



Southern Squid Jig Fishery Management Plan 2005

made under section 17 of the

Fisheries Management Act 1991

Compilation No. 3

Compilation date: 14 October 2024

Includes amendments: F2024L01167

Prepared by the Office of Parliamentary Counsel, Canberra

About this compilation

This compilation

This is a compilation of the *Southern Squid Jig Fishery Management Plan 2005* that shows the text of the law as amended and in force on 14 October 2024 (the **compilation date**).

The notes at the end of this compilation (the **endnotes**) include information about amending laws and the amendment history of provisions of the compiled law.

Uncommenced amendments

The effect of uncommenced amendments is not shown in the text of the compiled law. Any uncommenced amendments affecting the law are accessible on the Register (www.legislation.gov.au). The details of amendments made up to, but not commenced at, the compilation date are underlined in the endnotes. For more information on any uncommenced amendments, see the Register for the compiled law.

Application, saving and transitional provisions for provisions and amendments

If the operation of a provision or amendment of the compiled law is affected by an application, saving or transitional provision that is not included in this compilation, details are included in the endnotes.

Editorial changes

For more information about any editorial changes made in this compilation, see the endnotes.

Modifications

If the compiled law is modified by another law, the compiled law operates as modified but the modification does not amend the text of the law. Accordingly, this compilation does not show the text of the compiled law as modified. For more information on any modifications, see the Register for the compiled law.

Self-repealing provisions

If a provision of the compiled law has been repealed in accordance with a provision of the law, details are included in the endnotes.

Contents

Part 1	Preliminary	3
1	Name of Management Plan [<i>see</i> Note 1]	3
3	Definitions	3
4	Origin of geographical coordinates	4
5	Objectives (Act s 17 (5))	4
6	Measures by which the objectives are to be attained (Act s 17 (5))	5
7	Performance criteria against which measures taken may be assessed (Act s 17 (5))	6
8	Persons to whom this Management Plan applies	7
Part 2	Specific ecosystem requirements	8
9	By-catch (Act s 17 (6D))	8
10	Reference points	8
Part 3	Total allowable effort	10
11	Determination of TAE (Act s 17 (6))	10
12	Number of standard machines allocated to SFRs	10
13	Notice to owners of SFRs	10
14	Non-standard machines	10
Part 4	Right to fish in the fishery	12
15	Who may fish in the fishery	12
16	Number of machines carried by boat	12
17	Scientific research in the area of the fishery	13
Part 5	Statutory fishing rights	14
	Division 5.1 Registration of eligible persons for grant of SFRs	14
19	Registration of eligible persons for grant of SFRs	14
	Division 5.2 Availability and grant of SFRs	14
20	Availability of grants of SFRs (Act s 29 (3))	14
21	Request for grant	15
22	Certificate showing grant (Act s 22 (2))	15
Part 6	Obligations of holders of SFRs	17
30	General obligations	17
Part 7	Miscellaneous	18
34	Delegation	18
35	Agents	18
36	Notices	18
Part 8	Transitional	20
37	Transitional	20

	<i>Southern Squid Jig Fishery Management Plan 2005</i>	<i>i</i>
Compilation No. 3		Compilation date: 14/10/2024

Schedule 1	Area of the fishery	21
Endnotes		22
Endnote 1—	About the endnotes	22
Endnote 2—	Abbreviation key	23
Endnote 3—	Legislation history	24
Endnote 4—	Amendment history	25

<i>ii</i>	<i>Southern Squid Jig Fishery Management Plan 2005</i>	
Compilation No. 3		Compilation date: 14/10/2024

Part 1

Preliminary

1

Name of Management Plan [see Note 1]

This Management Plan is the *Southern Squid Jig Fishery Management Plan 2005*.

Note This Management Plan, made under the *Fisheries Management Act 1991*, manages only commercial fishing for squid using squid jigging machines in the area of the fishery. Commercial fishing for squid using trawl methods is managed under the *Southern and Eastern Scalefish and Shark Fishery Management Plan 2003*.

3

Definitions

In this Management Plan:

Act means the *Fisheries Management Act 1991*.

approved form means the form approved by AFMA for the section in which the term is used.

area of the fishery means the area described in Schedule 1.

by-catch means marine life that is:

- (a) taken in the fishery and returned to the sea for any reason; or
- (b) affected by interacting with fishing equipment in the fishery, but not taken.

by-catch action plan means the plan mentioned in section 9.

certificate, for a gear SFR, means a certificate given under subsection 22 (2) of the Act as evidence of the grant of the SFR.

eligible person means a person who is registered as an eligible person for the grant of a gear SFR under section 26 of the Act.

EPBC Act means the *Environment Protection and Biodiversity Conservation Act 1999*.

fishery means the Southern Squid Jig Fishery.

fishing year means a calendar year.

gear SFR means a statutory fishing right, granted under this Management Plan, that entitles the holder to engage in squid jigging in the fishery.

interested person, in relation to a determination made, or a direction given, under this Management Plan means:

- (a) a person who can demonstrate, to the satisfaction of AFMA, an ongoing involvement in the fishery that is likely to be affected by the determination or direction; or
- (b) an organisation or association (whether incorporated or not) the objects or purposes of which include, or the activities of which largely relate to, the fishery.

nominated boat, for a gear SFR, means a boat the details of which are entered in the Register, under section 45 of the Act, as the nominated boat for the SFR.

	<i>Southern Squid Jig Fishery Management Plan 2005</i>	3
Compilation No. 3		Compilation date: 14/10/2024

Section 4

observer means a person who is authorised by AFMA to carry out the functions of an observer under this Management Plan.

Southern Squid Jig Fishery means squid jigging in the area of the fishery.

squid jigging means fishing for squid using a squid jigging machine.

squid jigging machine means a device consisting of 1 or more jig lines, to which barbless lures are attached, that are rotated on elliptical spools by an electric motor.

SquidRAG means the Squid Resource Assessment Group established by AFMA to advise on the status of squid stocks.

SEMAC means the South East Management Advisory Committee established under section 54 of the *Fisheries Administration Act 1991*.

standard squid jigging machine means a squid jigging machine that has 2 elliptical spools with 1 jig line on each spool.

total allowable effort or **TAE**, for a fishing year, means the total number of standard squid jigging machines that may be used for squid jigging in the fishery in the fishing year.

Note Unless otherwise stated, a term used in this Management Plan and in the Act has the same meaning in this Management Plan as it has in the Act. The following terms are defined in subsection 4 (1) of the Act:

- AFMA
- AFZ
- Australian boat
- coastal waters
- fish
- fishing
- fishing permit
- officer
- Panel
- precautionary principle
- Register
- scientific permit
- statutory fishing right
- take.

4 Origin of geographical coordinates

The position of a geographic coordinate mentioned in this Management Plan is to be determined by reference to the Geocentric Datum of Australia (GDA94), as defined in *Gazette* No. GN 35, 6 September 1995.

5 Objectives (Act s 17 (5))

The objectives of this Management Plan are as follows:

- (a) to manage the fishery efficiently and cost-effectively for the Commonwealth;
- (b) to ensure that the exploitation of the resources of the fishery and the carrying on of any related activities are conducted in a manner consistent with the

4	Southern Squid Jig Fishery Management Plan 2005	
Compilation No. 3		Compilation date: 14/10/2024

Section 6

principles of ecologically sustainable development and the exercise of the precautionary principle, and, in particular, the need to have regard to the impact of fishing activities on by-catch species and the long-term sustainability of the marine environment;

- (c) to maximise economic efficiency in the exploitation of the resources of the fishery;
- (d) to ensure AFMA’s accountability to the fishing industry and to the Australian community in managing the resources of the fishery;
- (e) to meet Government targets for the recovery of the costs of AFMA in relation to the fishery;
- (f) to ensure, through proper conservation and management measures, that the living resources of the fishery are not endangered by over-exploitation;
- (g) to ensure the best use of the living resources of the fishery;
- (h) to ensure that conservation and management measures in the fishery implement Australia’s obligations under international agreements that deal with fish stocks;
- (i) to ensure, as far as practicable, that measures adopted in pursuit of these objectives are not inconsistent with the preservation, conservation and protection of all whale species.

6 Measures by which the objectives are to be attained (Act s 17 (5))

The measures by which the objectives of this Management Plan are to be attained include the following:

- (a) providing the services needed, including services in support of SEMAC, to develop sound and cost-effective fisheries management practices for the fishery;
- (b) revising the range, extent and cost of the services mentioned in paragraph (a), as necessary;
- (c) ensuring that the management practices of the fishery take into account the results of any research conducted in relation to the fishery;
- (d) monitoring the total catch for, and effort used in, the fishery against the reference points determined under section 10;
- (e) developing and implementing a strategy to collect, monitor and assess data that is related to the management of the fishery;
- (f) preparing, implementing and reviewing a by-catch action plan;
- (g) developing and implementing a research program to support the management of the fishery;
- (h) developing and implementing a program of effort monitoring and surveillance to ensure that the Management Plan is complied with;
- (i) if necessary, giving directions that fishing is not to be engaged in in the fishery, or a particular part of the fishery, during a particular period or periods;
- (j) granting transferable statutory fishing rights for the fishery to eligible persons;

	Southern Squid Jig Fishery Management Plan 2005		5
Compilation No. 3		Compilation date: 14/10/2024	

Section 7

- (k) developing and implementing a system for collecting data that can be used to assess the economic efficiency of the fishery;
- (l) publishing accurate information about the management of the fishery;
- (m) in accordance with the government's cost recovery policy, preparing annual budgets and recommending levies to recover the costs of management that are attributable to the fishing industry.

7 Performance criteria against which measures taken may be assessed (Act s 17 (5))

- (1) The performance criteria against which the measures taken may be assessed are as follows:
 - (a) that cost-effective and high quality research is carried out in relation to the fishery in accordance with a 5-year strategic research plan, the results of which are:
 - (i) included in the assessment process for the fishery; and
 - (ii) published in the assessment reports for the fishery; and
 - (iii) taken into consideration in determining the total allowable effort for a fishing year;
 - (b) that the management of the fishery is acknowledged by government and key stakeholders to be pursuing a cost-effective service;
 - (c) that data is collected and analysed in a timely manner to enable:
 - (i) evaluation of the effectiveness of the management measures implemented to maintain the resources of the fishery at, or rebuild the resources to, an acceptable level; and
 - (ii) modification of those measures;
 - (d) that a by-catch action plan is implemented and reviewed;
 - (e) that data is collected, and appropriately verified, to enable the impact of taking squid in the fishery to be assessed;
 - (f) that the key risks to the ecologically sustainable development of the fishery are identified and appropriate action taken to manage the risks;
 - (g) that transferable statutory fishing rights are granted to eligible persons;
 - (h) that data about the current and potential net economic returns of the fishery has been collected and analysed to enable:
 - (i) assessment of whether the data is consistent with improvements in the economic efficiency of the fishery; and
 - (ii) institutional arrangements to be modified, if necessary, to allow improvements in the economic efficiency of the fishery;
 - (i) that the budgetary objectives of the fishery are achieved.
- (2) AFMA and SEMAC must, from time to time, assess the effectiveness of this Management Plan, including the measures taken to achieve the objectives of the Plan, by reference to the performance criteria mentioned in subsection (1).

6	Southern Squid Jig Fishery Management Plan 2005	
Compilation No. 3		Compilation date: 14/10/2024

Section 8

- (3) AFMA must include in its annual report for each financial year a statement of the extent to which the performance criteria mentioned in subsection (1) were met in the year.

8

Persons to whom this Management Plan applies

This Management Plan applies to a person who is engaged in, or intends to engage in, any of the following in the area of the fishery:

- (a) commercial fishing for squid using a squid jigging machine;
- (b) scientific research using a squid jigging machine.

	Southern Squid Jig Fishery Management Plan 2005	7
Compilation No. 3		Compilation date: 14/10/2024

Section 9

Part 2 Specific ecosystem requirements

9 By-catch (Act s 17 (6D))

- (1) AFMA must prepare and implement a by-catch action plan for the fishery.
- (2) AFMA must review the by-catch action plan at least once every second year, while it is in force.
- (3) A by-catch action plan must require action to ensure that:
 - (a) information is gathered about by-catch; and
 - (b) all reasonable steps are taken to minimise incidental interactions with seabirds, marine reptiles, marine mammals and fish of a kind mentioned in sections 15 and 15A of the Act; and
 - (c) the ecological impacts of fishing operations on habitats in the area of the fishery are minimised and kept at an acceptable level; and
 - (d) by-catch is reduced to, or kept at, a minimum and below a level that will allow by-catch stocks to be maintained at an ecologically sustainable level.
- (4) In preparing a by-catch action plan, AFMA must take into account:
 - (a) the protection given to whales and other cetaceans under Division 3 of Part 13 of the EPBC Act; and
 - (b) the requirement under the EPBC Act for the protection of:
 - (i) marine species listed for section 248 of that Act; and
 - (ii) migratory species listed for section 209 of that Act; and
 - (iii) threatened ecological communities listed for section 181 of that Act; and
 - (iv) threatened species listed for section 178 of that Act.
- (5) If information gathered under a by-catch action plan shows that it is necessary to do so, AFMA must consider:
 - (a) making appropriate amendments to this Management Plan; or
 - (b) issuing an appropriate direction; or
 - (c) making appropriate changes to the conditions imposed on holders of gear SFRs.

10 Reference points

- (1) As soon as practicable after this Management Plan comes into force, AFMA must determine reference points for squid that are appropriate for maintaining ecologically viable stocks of squid and an ecologically sustainable fishery.

8	Southern Squid Jig Fishery Management Plan 2005	
Compilation No. 3		Compilation date: 14/10/2024

Section 10

- (2) Each year, AFMA may review the reference points set under subsection (1) to ensure that they remain appropriate for maintaining ecologically viable stocks of squid and an ecologically sustainable fishery.

	<i>Southern Squid Jig Fishery Management Plan 2005</i>	9
Compilation No. 3		Compilation date: 14/10/2024

Section 11

Part 3 Total allowable effort**11 Determination of TAE (Act s 17 (6))**

- (1) AFMA must, before the start of each fishing year, determine the TAE for the fishery for the fishing year.
- (2) Before making a determination under subsection (1), AFMA:
 - (a) must consult, and consider the views of, SEMAC and SquidRAG; and
 - (b) may consult, and consider the views of, any other interested person.

Note 1 AFMA may determine the fishing capacity permitted for the fishery — see paragraph 17 (6) (aa) of the Act.

Note 2 A determination under this section is a legislative instrument — see subsection 17 (6B) of the Act and paragraph 6 (d) of the *Legislative Instruments Act 2003*.

12 Number of standard machines allocated to SFRs

- (1) The number of standard squid jigging machines allocated to a gear SFR for a fishing year is worked out by dividing the TAE for the fishing year by the total number of gear SFRs in force at the start of the fishing year.
- (2) For subsection (1), the total number of gear SFRs for the fishery in force at the start of a fishing year is taken to include any gear SFRs that, at that time, are suspended under subsection 38 (1) or (3), or paragraph 98 (3) (d), of the Act.

Note See section 15 for the number of squid jigging machines that the holder, or a person acting on behalf of the holder, of a gear SFR is allowed to use.

13 Notice to owners of SFRs

Before the start of each fishing year, AFMA must give to each gear SFR owner a notice setting out:

- (a) the TAE for the fishery for the fishing year; and
- (b) the number of gear SFRs held by the owner; and
- (c) in relation to each gear SFR held by the owner:
 - (i) the number of standard squid jigging machines allocated to the SFR for the fishing year; and
 - (ii) the name of the nominated boat for the SFR.

14 Non-standard machines

- (1) The holder of a gear SFR or gear SFRs who intends to use a non-standard squid jigging machine in a fishing year may apply to AFMA for a decision about the number of those machines that are taken to be allocated to the gear SFR or gear SFRs for the fishing year.

10	Southern Squid Jig Fishery Management Plan 2005	
Compilation No. 3		Compilation date: 14/10/2024

Section 14

Note See section 15 for the number of squid jigging machines that the holder, or a person acting on behalf of the holder, of a gear SFR is allowed to use.

- (2) The number of non-standard squid jigging machines of a particular type that are taken to be allocated to a gear SFR or gear SFRs for a fishing year must be worked out using the formula:

$$\text{number of SFRs} \times \text{number of standard machines} \times CF$$

where:

number of SFRs is the number of gear SFRs held by the applicant.

number of standard machines is the number of standard squid jigging machines allocated, under section 12, to a gear SFR for the fishing year.

CF is the conversion factor for the type of non-standard machine, decided by AFMA in accordance with subsection (3).

- (3) In deciding the conversion factor for a type of non-standard squid jigging machine, AFMA must take into account the efficiency of such a non-standard machine relative to the efficiency of a standard squid jigging machine.
- (4) If an application is made under subsection (1), AFMA must give the applicant written notice of:
- the number of non-standard squid jigging machines of that type that are taken to be allocated to the applicant's gear SFR or gear SFRs for a fishing year; and
 - the conversion factor for the non-standard machine.
- (5) An applicant may seek a review of a decision about the conversion factor for a type of non-standard squid jigging machine as if the decision were a relevant decision under section 165 of the Act.

	<i>Southern Squid Jig Fishery Management Plan 2005</i>	11
Compilation No. 3		Compilation date: 14/10/2024

Section 15

Part 4 Right to fish in the fishery

15 Who may fish in the fishery

- (1) Subject to section 17, a person may engage in squid jigging in the fishery only if the person:
 - (a) holds, or is acting on behalf of a person who holds, a gear SFR that has, or gear SFRs that have, been allocated at least 1 standard squid jigging machine; and
 - (b) uses no more than the allowed number of squid jigging machines; and
 - (c) uses the boat that is nominated for the SFR; and
 - (d) acts in accordance with the conditions of the SFR.

Note For the conditions to which an SFR is subject, see Part 6 of this Management Plan and subsections 22 (3), (4) and (5) of the Act.

- (2) In paragraph (1) (b):

allowed number, for a person who holds, or is acting on behalf of a person who holds, a gear SFR or gear SFRs, means the number (rounded down, if not a whole number, to the nearest lower whole number) of:

- (a) standard squid jigging machines allocated to the gear SFR or gear SFRs; or
- (b) non-standard squid jigging machines that are taken to be allocated to the gear SFR or gear SFRs, as decided in accordance with section 14.

Example

If a person holds a gear SFR that has been allocated 5.5 standard squid jigging machines, the allowed number for the person is 5 standard squid jigging machines.

16 Number of machines carried by boat

- (1) The number of squid jigging machines that are carried by a nominated boat on a trip must be no greater than the allowed number of squid jigging machines for the boat.

- (2) In this section:

allowed number, for a nominated boat, means the number (rounded down, if not a whole number, to the nearest lower whole number) of:

- (a) standard squid jigging machines allocated to the gear SFRs for which the boat is nominated; or
- (b) non-standard squid jigging machines that are taken to be allocated to the gear SFRs for which the boat is nominated, as decided in accordance with section 14.

Example

If the total number of standard squid jigging machines allocated to the gear SFRs for which a boat is nominated is 5.5, the allowed number for the boat is 5 standard squid jigging machines.

12	Southern Squid Jig Fishery Management Plan 2005	
Compilation No. 3		Compilation date: 14/10/2024

Section 17

17 Scientific research in the area of the fishery

A person may use a boat in the area of the fishery for scientific research using a squid jigging machine only if the person is, or is acting with the consent of and on behalf of, the holder of a scientific permit that authorises the use of the boat in the area of the fishery for that purpose.

Note See section 33 of the Act about the grant of a scientific permit.

	<i>Southern Squid Jig Fishery Management Plan 2005</i>	<i>13</i>
Compilation No. 3		Compilation date: 14/10/2024

Part 5 Statutory fishing rights

Division 5.1 Registration of eligible persons for grant of SFRs

19 Registration of eligible persons for grant of SFRs

- (1) A person is eligible for the grant of 1 or more gear SFRs if, on the relevant date, the person held a fishing permit for the fishery.
- (2) For subsection (1), the **relevant date** means the date specified in a notice published in relation to gear SFRs under section 24 of the Act.

Note 1 Section 24 of the Act provides that AFMA may, by public notice, declare that it intends to grant statutory fishing rights in relation to fishing in a specified managed fishery.

Note 2 An application for registration as an eligible person for the grant of a statutory fishing right must be made within the period stated in a notice published under section 24 of the Act — see paragraph 25 (f) and subsection 26 (1) of the Act.

Note 3 Under subsection 26 (2) of the Act, AFMA must register as an eligible person an applicant for registration who meets the conditions for registration and who has paid the prescribed fee (if any). At present there is no prescribed fee.

Note 4 Section 165 of the Act provides that a person has a right of review in relation to a **relevant decision**, which includes a decision to register the person as eligible for the grant of a fishing right, or to grant or refuse to grant, a fishing right to the person. Application may be made to the Administrative Review Tribunal for review of a decision under that section — see subsection 165 (7).

Division 5.2 Availability and grant of SFRs

20 Availability of grants of SFRs (Act s 29 (3))

- (1) If a person is registered as an eligible person for the grant of 1 or more gear SFRs, a grant of the number of gear SFRs calculated in accordance with this section is available to the person.
- (2) The number of gear SFRs, for each fishing permit for the fishery held by the person, is:

$$\frac{\text{TAE}}{\text{total number of permits}} \times 10$$

where:

TAE is the TAE for the fishing year in which the gear SFRs will come into force.

total number of permits is the total number of fishing permits for the fishery that are held by eligible persons on the relevant date mentioned in section 19.

Note 1 See section 15 for the number of squid jigging machines that the holder, or a person acting on behalf of the holder, of a gear SFR is allowed to use.

14	Southern Squid Jig Fishery Management Plan 2005	
Compilation No. 3		Compilation date: 14/10/2024

Note 2 If, under subsection 29 (4) of the Act, gear SFRs are made available to a person, AFMA must notify the person (and each other person who registered under section 26 of the Act) about that fact and give a statement of reasons.

Note 3 Section 30 of the Act provides that, within 30 days of statutory fishing rights becoming available to a person, the person must pay the amount of any charge due and payable under the *Statutory Fishing Rights Charge Act 1991*. For this Management Plan, there is no charge.

Note 4 AFMA must grant a statutory fishing right to a person to whom the grant of the right is available if the person asks AFMA to grant the right — see section 31 of the Act.

21 Request for grant

- (1) If a person to whom grant of a gear SFR is available does not request the grant of the gear SFR within 30 days after AFMA sends a notice to the person under paragraph 29 (4) (a) of the Act, AFMA must send a notice (a **reminder notice**) to the person telling the person that the person must make the request within a period stated in the notice.
- (2) If the person does not make the request within the period stated in the reminder notice, AFMA must send another notice (a **final notice**) to the person stating that the gear SFR will cease to be available to the person 14 days after the final notice is sent unless the person:
 - (a) makes the request; and
 - (b) explains why the person did not make the request within the period stated in the reminder notice.
- (3) If, within 14 days after the final notice is sent to the person, the person does not:
 - (a) make the request; and
 - (b) satisfy AFMA that the person had a reasonable excuse for not making the request within the period stated in the reminder notice;then:
 - (c) the grant ceases to be available to the person; and
 - (d) AFMA must amend its records accordingly.

Note Under subsection 23 (3) of the Act, AFMA must not grant a statutory fishing right to a person:

- (a) before the end of the period within which applications may be made to the Statutory Fishing Rights Allocation Review Panel for review of decisions in relation to grants; or
- (b) if an application has been made to the Panel — before the application has been dealt with by the Panel or otherwise disposed of.

22 Certificate showing grant (Act s 22 (2))

- (1) AFMA must note the following details on the certificate for a gear SFR:
 - (a) the name of the person to whom the SFR is granted;
 - (b) a description of the SFR;
 - (c) that the SFR is granted for the fishery;
 - (d) the conditions to which the SFR is subject.

	<i>Southern Squid Jig Fishery Management Plan 2005</i>	15
Compilation No. 3		Compilation date: 14/10/2024

Section 22

- (2) A certificate may show the grant of more than 1 gear SFR to a person.
- (3) AFMA must give to a person to whom a gear SFR is granted an extract of the Register that:
- (a) states the conditions to which the SFR is subject; and
 - (b) is signed for AFMA by a person having authority to sign it.

Note 1 A gear SFR ceases to have effect if AFMA revokes this Management Plan — see subsections 20 (4) and 22 (3) of the Act.

Note 2 AFMA must register all gear SFRs granted — see section 45 of the Act.

Note 3 Section 45 of the Act provides that AFMA must enter certain information in the Register for each statutory fishing right that it grants, including such particulars as are prescribed. The *Fisheries Management (Southern Squid Jig Fishery) Regulations 2005* prescribe details that must be entered in the Register in relation to a nominated boat.

16	Southern Squid Jig Fishery Management Plan 2005	
Compilation No. 3		Compilation date: 14/10/2024

Part 6 Obligations of holders of SFRs

30 General obligations

It is a condition of a gear SFR that the holder must:

- (a) comply with this Management Plan; and
- (b) comply with any direction; and
- (c) if AFMA asks the holder to give AFMA biological, economic or technical information, or biological samples that are available to the holder — give AFMA the information and samples.

Note 1 Other conditions of a gear SFR are set out in the certificate for the SFR.

Note 2 The holder of a gear SFR must also comply with the Act and with any regulations applying to the fishery, including the *Fisheries Management Regulations 2019*, the *Fisheries Management (Southern Squid Jig Fishery) Regulations 2005*, and the annual levy Regulations.

Note 3 See subsections 22 (3), (4) and (5) of the Act for other conditions to which a statutory fishing right is subject.

Note 4 See section 38 of the Act about AFMA's power to suspend a statutory fishing right if it has reasonable grounds to believe that there has been a contravention of a condition of the right.

	<i>Southern Squid Jig Fishery Management Plan 2005</i>	17
Compilation No. 3		Compilation date: 14/10/2024

Section 34

Part 7 Miscellaneous

34 Delegation

AFMA may, by writing under its common seal, delegate to an officer of AFMA any of its powers or functions under this Management Plan, except its powers under section 11 and this section.

Note See subsection 17 (11) of the Act about the delegation of powers under section 11.

35 Agents

- (1) If the holder of a gear SFR appoints a person to be the holder's agent for a matter to which this Management Plan applies, the holder must give AFMA a written notice that states:
 - (a) the name of the agent; and
 - (b) the powers that may be exercised by the agent.
- (2) A notice must be accompanied by the instrument, or a certified copy of the instrument, by which the holder appointed the agent.
- (3) For this Management Plan, the appointment of an agent by the holder of a gear SFR is of no effect unless AFMA has been notified of the appointment under subsection (1).
- (4) In making a decision on an application under this Management Plan:
 - (a) AFMA may assume that a notice given under this section is properly given; and
 - (b) AFMA need not verify, by other means, the authority of the agent to make the application.

36 Notices

- (1) In this section:

residential, office, postal or e-mail address, or **fax number**, for the holder of a gear SFR, means the holder's residential, office, postal or e-mail address, or fax number, stated in the Register.

notice means a notice that is required, or allowed, by this Management Plan to be given in writing.

working day, in a place, means a day that is not:

 - (a) a Saturday or a Sunday; or
 - (b) a public holiday in the place.
- (2) A notice to the holder of a gear SFR is taken to be given to the holder if it is:
 - (a) delivered to the holder's residential or office address; or
 - (b) posted to the holder's postal address; or

18	Southern Squid Jig Fishery Management Plan 2005	
Compilation No. 3		Compilation date: 14/10/2024

Section 36

- (c) sent by fax to the holder's fax number; or
 - (d) sent by e-mail to the holder's e-mail address.
- (3) A notice to AFMA must be addressed to the Manager, Licensing and Quota Management, Australian Fisheries Management Authority, and:
- (a) delivered to the reception desk at:
 - Level 6
 - 73 Northbourne Avenue
 - Canberra ACT; or
 - (b) posted to:
 - Box 7051
 - Canberra Business Centre
 - ACT 2610; or
 - (c) sent by fax (from within Australia) to:
 - (02) 6225 5426; or
 - (d) sent by fax (from outside Australia) to:
 - 612 6225 5426; or
 - (e) sent by e-mail to:
 - licensing@afma.gov.au; or
 - (f) delivered, posted or sent by fax or e-mail to another office address, postal address, fax number or e-mail address notified by AFMA by notice published in the *Gazette* and a newspaper circulating in the State or Territory in which the address or fax receiver is located.
- (4) A notice given to the holder of a gear SFR, or to AFMA, under this section is taken to have been given to the holder, or AFMA:
- (a) for a notice delivered to a residential or office address — on the day when the notice is delivered; and
 - (b) for a notice that is sent by fax or e-mail:
 - (i) on a working day between 9 am and 4 pm — 1 hour after the notice is sent; and
 - (ii) otherwise — at 9 am on the next working day after the day when the notice is sent.

Note Under subsection 160 (1) of the *Evidence Act 1995*, it is presumed (unless evidence sufficient to raise doubt about the presumption is adduced) that a postal article sent by pre-paid post addressed to a person at a specified address in Australia or in an external Territory was received at that address on the fourth working day after it was posted.

	<i>Southern Squid Jig Fishery Management Plan 2005</i>	19
Compilation No. 3		Compilation date: 14/10/2024

Section 37

Part 8 Transitional

37 Transitional

- (1) This section ceases to have effect on the day specified in the notice published in the *Gazette* under subsection (2).
- (2) As soon as practicable after the first gear SFRs granted under this Management Plan come into effect, AFMA must publish a notice in the *Gazette* stating that this section ceases to have effect on a day specified in the notice.
- (3) The day specified in a notice under subsection (2) must not be earlier than the day on which the notice is published.
- (4) Despite section 15 a person may engage in squid jigging in the fishery if:
 - (a) the person holds a fishing permit for the fishery; and
 - (b) the permit is in force.
- (5) This Management Plan does not affect a fishing permit for the fishery, or a condition to which the permit is subject.
- (6) This Management Plan does not prevent AFMA from granting or transferring a fishing permit for the fishery.

20	Southern Squid Jig Fishery Management Plan 2005	
Compilation No. 3		Compilation date: 14/10/2024

Schedule 1 Area of the fishery

(section 3)

The part of the AFZ that is:

- (a) off the coast of Queensland, south of the parallel of latitude 24° 30' S and east of a line joining the following points:
- latitude 24° 30' S, longitude 154° 40' E;
 - latitude 27° 47' 25.29" S, longitude 154° 40' E;
 - latitude 27° 48' S, longitude 154° 22' E;
 - latitude 27° 58' S, longitude 154° 00' E;
 - the intersection of the eastern shore of Australia with the parallel of latitude 28° 10' S; and
- (b) adjacent to New South Wales, Victoria, South Australia and Tasmania, excluding coastal waters.

	<i>Southern Squid Jig Fishery Management Plan 2005</i>	21
Compilation No. 3		Compilation date: 14/10/2024

Endnotes

Endnote 1—About the endnotes

Endnotes

Endnote 1—About the endnotes

The endnotes provide information about this compilation and the compiled law.

The following endnotes are included in every compilation:

Endnote 1—About the endnotes

Endnote 2—Abbreviation key

Endnote 3—Legislation history

Endnote 4—Amendment history

Abbreviation key—Endnote 2

The abbreviation key sets out abbreviations that may be used in the endnotes.

Legislation history and amendment history—Endnotes 3 and 4

Amending laws are annotated in the legislation history and amendment history.

The legislation history in endnote 3 provides information about each law that has amended (or will amend) the compiled law. The information includes commencement details for amending laws and details of any application, saving or transitional provisions that are not included in this compilation.

The amendment history in endnote 4 provides information about amendments at the provision (generally section or equivalent) level. It also includes information about any provision of the compiled law that has been repealed in accordance with a provision of the law.

Editorial changes

The *Legislation Act 2003* authorises First Parliamentary Counsel to make editorial and presentational changes to a compiled law in preparing a compilation of the law for registration. The changes must not change the effect of the law. Editorial changes take effect from the compilation registration date.

If the compilation includes editorial changes, the endnotes include a brief outline of the changes in general terms. Full details of any changes can be obtained from the Office of Parliamentary Counsel.

Misdescribed amendments

A misdescribed amendment is an amendment that does not accurately describe how an amendment is to be made. If, despite the misdescription, the amendment can be given effect as intended, then the misdescribed amendment can be incorporated through an editorial change made under section 15V of the *Legislation Act 2003*.

If a misdescribed amendment cannot be given effect as intended, the amendment is not incorporated and “(md not incorp)” is added to the amendment history.

22	<i>Southern Squid Jig Fishery Management Plan 2005</i>	
Compilation No. 3		Compilation date: 14/10/2024

Endnote 2—Abbreviation key

ad = added or inserted	o = order(s)
am = amended	Ord = Ordinance
amdt = amendment	orig = original
c = clause(s)	par = paragraph(s)/subparagraph(s) /sub-subparagraph(s)
C[x] = Compilation No. x	pres = present
Ch = Chapter(s)	prev = previous
def = definition(s)	(prev...) = previously
Dict = Dictionary	Pt = Part(s)
disallowed = disallowed by Parliament	r = regulation(s)/rule(s)
Div = Division(s)	reloc = relocated
ed = editorial change	renum = renumbered
exp = expires/expired or ceases/ceased to have effect	rep = repealed
F = Federal Register of Legislation	rs = repealed and substituted
gaz = gazette	s = section(s)/subsection(s)
LA = <i>Legislation Act 2003</i>	Sch = Schedule(s)
LIA = <i>Legislative Instruments Act 2003</i>	Sdiv = Subdivision(s)
(md) = misdescribed amendment can be given effect	SLI = Select Legislative Instrument
(md not incorp) = misdescribed amendment cannot be given effect	SR = Statutory Rules
mod = modified/modification	Sub-Ch = Sub-Chapter(s)
No. = Number(s)	SubPt = Subpart(s)
	<u>underlining</u> = whole or part not commenced or to be commenced

	<i>Southern Squid Jig Fishery Management Plan 2005</i>	23
Compilation No. 3		Compilation date: 14/10/2024

Endnotes

Endnote 3—Legislation history

Endnote 3—Legislation history

Name	Registration	Commencement	Application, saving and transitional provisions
Southern Squid Jig Fishery Management Plan 2005	27 Apr 2005 (F2005L00964)	28 Apr 2005 (s 2)	
Southern Squid Jig Fishery Management Plan Amendment 2010 (No. 1)	8 Dec 2010 (F2010L03194)	9 Dec 2010 (s 2)	—
Fisheries Legislation (Management Plans) Amendment 2011 (No. 1)	19 Dec 2011 (F2011L02746)	20 Dec 2011 (s 2)	—
Fisheries Management Legislation Amendment (Minor Updates to Management Plans) Instrument 2024	16 Sept 2024 (F2024L01167)	Sch 1 (items 33, 34): 14 Oct 2024 (s 2(1) item 1)	—

24	Southern Squid Jig Fishery Management Plan 2005	
Compilation No. 3		Compilation date: 14/10/2024

Endnote 4—Amendment history

Endnote 4—Amendment history

Provision affected	How affected
Part 1	
s 2.....	rep LA s 48D
s 3.....	am F2010L03194; F2011L02746
s 6.....	am F2010L03194
s 7.....	am F2010L03194
Part 2	
s 9.....	am F2011L02746
Part 3	
s 11.....	am F2010L03194; F2011L02746
Part 4	
s 15.....	am F2011L02746
s 18.....	am F2010L03194
	rep F2011L02746
Part 5	
Division 5.1	
s 19.....	am F2024L01167
Division 5.3	rep F2011L02746
s 23.....	rep F2011L02746
s 24.....	rep F2011L02746
s 25.....	rep F2011L02746
Division 5.4	rep F2011L02746
s 26.....	rep F2011L02746
s 27.....	rep F2011L02746
s 28.....	rep F2011L02746
s 29.....	rep F2011L02746
Part 6	
s 30.....	am F2011L02746; F2024L01167
s 31.....	rep F2011L02746
s 32.....	rep F2011L02746
s 33.....	rep F2011L02746
Part 7	
s 34.....	am F2011L02746
s 36.....	am F2011L02746

	<i>Southern Squid Jig Fishery Management Plan 2005</i>		25
Compilation No. 3		Compilation date: 14/10/2024	